Robertson, Anschutz, Schneid, Crane & Partners, PLLC
130 Clinton Road, Lobby B, Suite 202
Fairfield, NJ 07004
Telephone: 973-575-0707
Attorneys for Secured Creditor
Kenneth J. Borgen
kborgen@rasflaw.com

UNITED STATES BANKRUPTCY COURT
DISTRICT OF NEW JERSEY
Caption in Compliance with D.N.J. LBR 9004-2(c)

Robertson, Anschutz, Schneid, Crane & Partners, PLLC
130 Clinton Road, Lobby B, Suite 202
Fairfield, NJ 07004
Telephone:973-575-0707
Attorneys for Secured Creditor

UNITED STATES BANKRUPTCY COURT
DISTRICT OF NEW JERSEY

In Re: DAVID CUSHING, In re: David Cushing, Debtor. DAVID CUSHING, Plaintiff, v. David Cushing, Plaintiff, v. LAKEVIEW LOAN SERVICING, LLC, Defendant. Lakeview Loan Servicing, LLC, Defendant.	Case No. 25-22945 Chapter 13 Caption in Compliance with D.N.J. LBR 9004-1 Case No.: 25-22945 Judge: Andrew B. Altenburg Jr Chapter 13 Judge: Hon. Andrew B. Altenburg, Jr. Hearing Date: May 12, 2026, at 2:00 pm Adv. Pro. No. 26-01099-ABA Adv. Pro. No. 26-01099-ABA

COMBINED RESPONSE TO PLAINTIFF'S MOTION FOR DEFAULT JUDGMENT (DOCKET ENTRY 4) AND DEFENDANT'S MOTION DIMISS ADVERSARY COMPLAINT WITH PREJUDICE

Combined Response to Plaintiff's Motion for Default Judgment (Docket Entry 4) and Defendant's Motion to Dismiss Adversary Complaint with Prejudice

Defendant LAKEVIEW LOAN SERVICING, LLC (hereinafter "Defendant" or "Secured Creditor") respectfully submits this combined pleading as both a Response in Opposition to the Motion for Default Judgment filed by Plaintiff on April 13, 2026 (docket entry 4), and as a Motion to Dismiss the underlying adversary complaint (docket entry 1) for failure to state a cause of action.

Defendant LAKEVIEW LOAN SERVICING, LLC (hereinafter "Defendant" or "Secured Creditor") respectfully submits this combined pleading as both a Response to Dismiss the underlying adversary complaint (docket entry 1) for failure to state a cause of action. in Opposition to the Motion for Default Judgment filed by Plaintiff on April 13, 2026 Alternatively, counsel submits this filing as an Answer denying each averment with the exceptions of averments 23 through 25, wherein, Defendant admits the only averments asserted.

PRELIMINARY STATEMENT

The loan underlying this debt is represented in Proof of Claim (POC) 8-1, as filed in the main case on February 11, 2026. That claim was filed on behalf of Lakeview Loan Servicing, LLC, with Rocket Mortgage, LLC identified as servicer. The noticing address in the POC is

Rocket Mortgage, LLC, Attn: Bankruptcy Dept, P.O. Box 61906, Dallas, TX 75261-9741.

The first deficiency the Court should note is the adversary complaint was served on neither Lakeview Loan Servicing as the owner of the mortgage debt, nor on Rocket Mortgage at the correct P.O Box. The certificate of service indicates it was served on *Nationstar* Mortgage, LLC at P.O. Box 61904, Dallas, TX 75261-9094. This is not the proper service address for either Lakeview Loan Servicing or its servicer Rocket Mortgage, LLC. Without proper service of the underlying complaint, the Plaintiff's Motion for Default Judgment should be denied.

As shown in the loan documents included in the POC, the loan which underlies this matter originated on December 22, 2016. Plaintiff borrowed $171,731 from Greentree Mortgage Company, LP on that date for the purchase of the real property located at 1734 Almond Rd., Vineland, New Jersey. Plaintiff signed a Promissory Note (attached to the POC) memorializing that loan agreement. Concurrent with obtaining this purchase money loan, Plaintiff gave to MERS as nominee for Greentree Mortgage Company, LP a mortgage lien interest to secure repayment of the underlying debt. That Mortgage signed by the Plaintiff was duly recorded on January 16, 2017 with the Cumberland County Clerk's Office at Instrument Number 523035 (attached to the POC).

STATEMENT OF FACTS

The Plaintiff does not dispute that he entered into both of these transactions (the Note and the Mortgage) to enable him to purchase the subject real property. Indeed, in paragraph 15 of the complaint Plaintiff appears to concede that he in fact owes *somebody* repayment of this debt. Presumably he is not disputing the *amount* of the debt asserted in the POC, as he has not filed any objection to that POC in the main case. Under 11 U.S.C. Section 502 the claim should be deemed allowed as filed, and must be addressed for payment in the Chapter 13 Plan or the collateral surrendered.

The essence of the allegations in the complaint is the Plaintiff is challenging the standing of the claimant Lakeview Loan Servicing,, LLC to enforce the Note and duly perfected Mortgage interest. But every argument or challenge raised by the Plaintiff is either facially untrue as a matter of fact, or relies on a misconception of the law as to what a party needs to demonstrate to assert the right to enforce a Promissory Note and Mortgage.

The Plaintiff does not dispute that he entered into both of these transactions (the Note and the Mortgage) to enable him to purchase the subject real property. Indeed, in

New Jersey has adopted the Uniform Commercial Code in NJSA Title 12A. The Promissory Note is a negotiable instrument under section 12A:3-104. The Note bears an indorsement in blank. Under 12A:1-201(21)(a) Defendant is a holder. Under 12A:3-301 Defendant is entitled to enforce the Note as a holder in possession of the Note indorsed in blank.

The duly perfected Mortgage originally given to MERS as nominee for Greentree was assigned of record to Freedom Mortgage Corporation on December 29, 2021, duly recorded that same date (Ex A), then to Nationstar Mortgage on February 9, 2022, recorded that same date (Ex B), and finally to Lakeview Loan Servicing, LLC on April 7, 2022, recorded that same date (Ex C). Plaintiff does not dispute the existence of any these assignments of mortgage (AOMs). Indeed, in paragraph 11 he concedes that these are all of public record. The Plaintiff's challenge to these assignments of the right to enforce the duly recorded and perfected security interest appears to be questioning the validity of the signatures of representatives of the entities assigning the interest. But under 12A:3-308 both the authenticity and the authority of the signatures is presumed to be valid, unless the challenge is being asserted by a party seeking to enforce liability *against the purported signer*. That is not the case here, as Plaintiff is not and never was a party entitled to enforce the Mortgage – he is instead the original Mortgagor, and as such he has no standing to challenge the validity of the signatures in any subsequent AOM.

Further, and most damning to Plaintiff's case, the Superior Court of New Jersey Chancery Division, Cumberland County, in case number F-009304-22 entered a judgment in foreclosure on May 24, 2023 expressly finding that Defendant is in fact entitled under New Jersey law to enforce the Note and the Mortgage lien. To the extent that Debtor seeks to challenge standing, he should have done so in the foreclosure proceedings. Because standing was established in the foreclosure, Debtor's claims are barred by the *Rooker-Feldman Abstention Doctrine*, the *Colorado River Doctrine*, the *Younger Doctrine*, the entire controversy doctrine, and the doctrine of *res judicata*.

Because the Complaint fails as a matter of law, it should be dismissed with prejudice.

LEGAL ARGUMENT

I. Secured Creditor's Motion to Dismiss Should be Granted.

A. The Legal Standard for Motions to Dismiss under Rule 12(b)(1)

New Jersey has adopted the Uniform Commercial Code in NJSA Title 12A. The Promissory Note is a negotiable instrument under section 12A:3-104. The Note bears an indorsement in blank. Under 12A:1-201(21)(a) Defendant is a holder. Under 12A:3-301 Defendant is entitled to enforce the Note as a holder in possession of the Note indorsed in blank. AOM.

The duly perfected Mortgage originally given to MERS as nominee for Green Tree was assigned of record to Freedom Mortgage Corporation on December 29, 2021, duly recorded that same date (Ex A), then to Nationstar Mortgage on February 9, 2022, recorded that same date (Ex B), and finally to Lakeview Loan Servicing, LLC on April 7, 2022, recorded that same date (Ex C). Plaintiff does not dispute the existence of any these assignments of mortgage (AOMs). Indeed, in paragraph 11 he concedes that these are all of public record. The Plaintiff's challenge to these assignments of the right to enforce the duly recorded and perfected security interest appears to be questioning the validity of the signatures of representatives of the entities assigning the interest. But under 12A:3-308 both the authenticity and the authority of the signatures is presumed to be valid, unless the challenge is being asserted by a party seeking to enforce liability *against the purported signer*. That is not the case here, as Plaintiff is not and never was a party entitled to enforce the Mortgage – he is instead the original Mortgagor, and as such he has no standing to challenge the validity of the signatures in any subsequent AOM.

Further, and most damning to Plaintiff's case, the Superior Court of New Jersey Chancery Division, Cumberland County, in case number F-009304-22 entered a judgment in foreclosure on May 24, 2023 expressly finding that Defendant is in fact entitled under New Jersey law to enforce the Note and the Mortgage lien. To the extent that Debtor seeks to challenge standing, he should have done so in the foreclosure proceedings. Because standing was established in the foreclosure, Debtor's claims are barred by the Rooker-Feldman Abstention Doctrine, the Colorado River Doctrine, the Younger Doctrine, the entire controversy doctrine, and the doctrine of res judicata.

Because the Complaint fails as a matter of law, it should be dismissed with prejudice.

LEGAL ARGUMENT

I. Secured Creditor's Motion to Dismiss Should be Granted.

A. The Legal Standard for Motions to Dismiss Under Rule 12(b)(1)

Rule 12(b)(1) mandates dismissal of an action where a federal court lacks subject matter jurisdiction. The existence of subject matter jurisdiction is a threshold issue. "The subject matter jurisdiction of federal courts is limited and they may exercise only that jurisdiction which Congress has prescribed." *Kokkonen v. Guardian Life Insurance Co. of Am.*, 511 U.S. 375, 377 (1994). Absent a proper basis for subject matter jurisdiction, a case must be dismissed. *Steel Co. v. Citizens for a Better Env't.*, 523 U.S. 83, 96 (1998). A party who seeks to invoke federal jurisdiction bears the burden of proving standing. *ACLU-NJ v. Twp. of Wall*, 246 F.3d 258, 266 (3d Cir. 2001).

B. The Legal Standard for Motions to Dismiss under Rule 12(b)(6)

I. Secured Creditor's Motion to Dismiss Should be Granted.

A. The Legal Standard for Motions to Dismiss Under Rule 12(b)(1)

A motion to dismiss pursuant to Rule 12(b)(6) may be granted when, accepting all well-pled allegations in the Complaint as true and reviewing them in the light most favorable

to the plaintiff, plaintiff is not entitled to relief. *Jordan Banking Co. v. Fayette Sq. Litig.*, 114 F.3d 1410, 1420 (3d Cir. 1997). However, "factual allegations must be enough to raise a right to relief above a speculative level." *Bell Sussex Corp. v. Twombly*, 127 S.Ct. 1955, 1965 (2007); see also *Ashcroft v. Iqbal*, 129 S.Ct. 1937, 1949-50 (2009) (discussing plausibility standard).

When deciding a Rule 12(b)(6) motion, a court may consider the Complaint, exhibits attached to the Complaint, matters of public record, and undisputed authentic documents if the plaintiff's claims are based upon those documents. *Pension Benefit Guar. Corp. v. White Consol. Indus.*, 998 F.2d 1192, 1196 (3d Cir. 1993).

To determine whether the doctrine of res judicata bars a subsequent action, both New Jersey and the Federal Courts consider whether three circumstances are present: (1) was the prior decision a final judgment on the merits; (2) are the litigants the same parties or their privies; and (3) is the subsequent suit based upon the same cause of action." U.S. v. Athlone Industries, Inc., 746 F.2d 977, 983 (3d Cir. 1984); In re. Mallarkey, 536 F.3d 215 (3d. Cir. 2008).

1. THIS COURT LACKS SUBJECT MATTER JURISDICTION PURSUANT TO RES-JUDICATA & ENTIRE CONTROVERSY DOCTRINE

A cursory review and generous reading of the Adversary Complaint indicates that the crux of Debtor's claims is solely the standing of the Defendant to enforce the Note and Mortgage, which was expressly part of the finding in the state court Foreclosure. Such claims by Plaintiff are precluded under the doctrine of *Res Judicata*. Also referred to as "claim preclusion", *res judicata* prohibits the re-litigation of claims that have already been adjudicated or that could and should have been raised in a previous proceeding. *In re. Target Indus., Inc.*, 328 B.R. 99, 115-116 (D.N.J. 2005); *Gibbons v. First Fidelity Bank, N.A.*, 225 B.R. 376, 387 (D.N.J. 2000).

Moreover, it has been held by the United States Supreme Court that a federal court must give to a state-court judgment the same preclusive effect as would be given that judgment under the law of the State in which the judgment was rendered. In Allen v. McCurry, 449 U.S. 90 (1980), this Court said: "Indeed, though the federal courts may look to the common law or to the policies supporting res judicata and collateral estoppel in assessing the preclusive effect of decisions of other federal courts, Congress has specifically required all federal courts to give preclusive effect to state court judgments whenever the courts of the State from which the judgments emerged would do so. . . ." Id., at 96.

The Entire Controversy Doctrine requires litigants to assert all known, transactionally related claims in one action. This means that the Debtor was required to assert all affirmative claims and defenses related to the foreclosure, so to the extent that any claim or defense was left out of the foreclosure case by the Debtor, they are barred from making those arguments.

As set forth by the New Jersey Supreme Court, the entire controversy doctrine requires that all issues of a single dispute between the parties must be completely determined in one action. *U.S. v. Athlone Industries, Inc.*, 746 F.2d 977, 983 (3d Cir. 1984).

Rule 4:27-1 provides that "[e]ach party to an action shall assert thereon all claims which he may have against any other party thereto insofar as they may be required by application of the entire controversy doctrine." See R. 4:5-4 (pleadings seeking to present claims sufficient to constitute an avoidance must set forth specific supporting facts; failure to raise such claims constitutes a waiver); Kress v. Kress, 1 N.J. 257 (1949). Culver v. Ins. Co. of N. Am., 115 N.J. 451, 463-464 (1989). The State of New Jersey codified the Entire Controversy Doctrine under N.J. Ct. R. 4:30A stating that, "Non-joinder of claims required to be joined by the entire controversy doctrine shall result in the preclusion of the omitted claims to the extent required by the entire controversy doctrine."

In the present matter, the Chancery Judge determined, based on the proofs submitted in the Foreclosure, that the foreclosing Plaintiff had proven standing to enforce the Note and the Mortgage when the Foreclosure Judgment was entered. Debtor did not pursue any subsequent remedies in the State Court. No appeal was taken of the Foreclosure Judgment. Accordingly, applying the factors identified above, it is clear that res judicata applies and Debtor cannot again try to re-litigate the underlying state court judgment or the documents supporting the judgment.

[Pages 6 to 8 of the filing, including the Younger Doctrine argument, are not transcribed in this sample.]

[The Rooker-Feldman argument follows on pages 9 to 11 of the filing; its heading is not transcribed.]

Under the abstention doctrine set forth in *Knapper v. Bankers Trust Co.*, as Trustee for Amresco Residential Securities Corp. (In re. Knapper), 407 F.3d 573, 580 (3d. Cir. 2005), citing *Walker v. Horn*, 385 F.3d 321, 329 (3d Cir. 2004), the relief requested requires determining whether the state court's decisions is wrong or voiding the state court's ruling. The Supreme Court has held that the Rooker-Feldman Doctrine applies to cases brought by state-court losers complaining of injuries caused by state-court judgments rendered before the federal district court proceedings commenced and inviting district court reviews and rejection of those judgments." *Exxon Mobil Corp. v. Saudi Basic Industries Corp.*, 544 U.S. 280, 284 (2005). In effect, the

The Entire Controversy Doctrine requires litigants to assert all known transactionally related claims in one action. This means that the Debtor was required to assert all affirmative claims and defenses related to the foreclosure, so to the extent that any claim or defense was left out of the foreclosure case by the Debtor, they are barred from making those arguments.

In the present matter, the Chancery Judge determined, based on the proofs submitted in the Foreclosure, that the foreclosing Plaintiff had proven standing to enforce the Note and the Mortgage when the Foreclosure Judgment was entered.

Debtor did not pursue any subsequent remedies in the State Court. No appeal was taken of the Foreclosure Judgment. Accordingly, applying the factors identified above, it is clear that res judicata applies and Debtor cannot again try to re-litigate the underlying remedies in the State Court. No appeal was taken of the Foreclosure Judgment. Accordingly, state court judgment or the documents supporting the judgment.

Under the abstention doctrine set forth in *Knapper v. Bankers Trust Co.*, as Trustee for Amresco Residential Securities Corp. (In re. Knapper), 407 F.3d 573, 580 (3d. Cir. 2005), citing *Walker v. Horn*, 385 F.3d 321, 329 (3d Cir. 2004), the relief requested requires determining whether the state court's decisions is wrong or voiding the state court's ruling. The Supreme Court has held that the Rooker-Feldman Doctrine applies to cases brought by state-court losers complaining of injuries caused by state-court judgments rendered before the federal district court proceedings commenced and inviting district court reviews and rejection of those judgments." *Exxon Mobil Corp. v. Saudi Basic Industries Corp.*, 544 U.S. 280, 284 (2005). In effect, the

In the present matter, the Chancery Judge determined, based on the proofs submitted in the Foreclosure, that the foreclosing Plaintiff had proven standing to enforce the Note and the Mortgage when the Foreclosure Judgment was entered. Debtor did not pursue any subsequent remedies in the State Court. No appeal was taken of the Foreclosure Judgment. Accordingly, applying the factors identified above, it is clear that *res judicata* applies and Debtor cannot again try to re-litigate the underlying state court judgment or the documents supporting the judgment.

Second, the parties to the adversary proceeding are the same as or privies of the parties to the foreclosure, namely Plaintiff and Defendant. For the final factor, whether the causes of action are the same, Courts look toward the "essential similarity of the underlying events giving rise to the various legal claims." Lubrizol Corp. v. Exxon Corp., 929 F.2d 960 (3d Cir. 1991). This principle is "in keeping with the trend of requiring that a party present all claims for relief arising out of the same occurrence or transaction in one suit." Lubrizol, supra at 963. It is clear when reading the Complaint that Debtor is seeing to und the underlying foreclosure action, by asking this Court again to determine whether foreclosing Plaintiff has a valid lien and whether the Foreclosure Judgment is valid. Debtor squandered his opportunity to challenge standing, and now seeks his chance to do in Bankruptcy what he failed to attempt in foreclosure. Accordingly, the doctrine of *res judicata* precludes the Court from considering the allegations set forth in the adversary proceeding, and the adversary complaint must be dismissed with prejudice.

2. Debtor's Claims are Barred by the Younger Doctrine

The claims and issues raised in the instant action are wholly tied to the Foreclosure, and Debtor should be barred from raising them again. Under the abstention doctrine set forth in

when the Foreclosure Judgment was entered. Rather than pursuing state court remedies, Debtor filed this Adversary.

The instant adversary alleges that the Foreclosing Plaintiff lacks standing to prosecute the Foreclosure. Unfortunately for Debtor, the standing issue was resolved with the entry of the Foreclosure Judgment. There is no doubt that Debtor is attempting to undo the Foreclosure Judgment by challenging the standing of the Foreclosing Plaintiff to foreclose upon it. Accordingly, the continuation of the adversary proceeding would require improper review of the Foreclosure Judgment. Pursuant to the tenants of the Rooker-Feldman Doctrine, this action should be dismissed with prejudice.

Dated: April 16, 2026

Robertson, Anschutz, Schneid, Crane & Partners, PLLC
130 Clinton Road, Lobby B, Suite 202
Fairfield, NJ 07004
Telephone: 973-575-0707
Attorneys for Secured Creditor

/s/ Kenneth J. Borger
Kenneth J. Borger
NJ Bar ID: 171092015
Email: kborger@raslg.com
Dated: April 16, 2026

doctrine precludes lower federal courts from exercising appellate jurisdiction over final state court judgments. *Lance v. Dennis*, 546 U.S. 549 (2006).

The Third Circuit elaborated upon these holdings and provided for a few requirements that must be met before the Rooker-Feldman Doctrine will apply: (1) the federal plaintiff lost in state court; (2) the plaintiff complains of injuries caused by the state court judgment; (3) the judgment was rendered prior to the initiation of the federal suit filed; and (4) the plaintiff is inviting the federal district court to review and reject the state court judgment. *Great Western Mining & Mineral Co. v. Fox Rothschild, LLP*, 615 F.3d 159, 166 (3d Cir. 2010), quoting *Exxon Mobil*, 544 U.S. at 284.

Applying these factors, it is clear that this Court is without subject matter jurisdiction to consider the allegations of Debtor's Complaint. Debtor lost in the state court foreclosure action when the Foreclosure Judgment was entered. Rather than pursuing state court remedies, Debtor filed this Adversary.

The instant adversary alleges that the Foreclosing Plaintiff lacks standing to prosecute the Foreclosure. Unfortunately for Debtor, the standing issue was resolved with the entry of the Foreclosure Judgment. There is no doubt that Debtor is attempting to undo the Foreclosure Judgment by challenging the standing of the Foreclosing Plaintiff to foreclose upon it. Accordingly, the continuation of the adversary proceeding would require improper review of the Foreclosure Judgment. Pursuant to the tenants of the Rooker-Feldman Doctrine, this action should be dismissed with prejudice.

CONCLUSION

For all of the foregoing reasons, LAKEVIEW LOAN SERVICING, LLC respectfully request that the Court denies the Plaintiff's Motion for Default Judgment, and grants this Motion to Dismiss with Prejudice all claims asserted against them.

Dated: April 16, 2026

Dated: April 16, 2026

Respectfully submitted,
Robertson, Anschutz, Schneid, Crane & Partners, PLLC
130 Clinton Road, Lobby B, Suite 202
Fairfield, NJ 07004
Telephone: 973-575-0707
/s/ Kenneth J. Borger
Kenneth J. Borger
NJ Bar ID: 171092015
Email: kborger@raslg.com
Attorneys for Secured Creditor

Robertson, Anschutz, Schneid, Crane & Partners, PLLC
130 Clinton Road, Lobby B, Suite 202
Fairfield, NJ 07004
Telephone: 973-575-0707
Attorneys for Secured Creditor
/s/ Kenneth J. Borger
Kenneth J. Borger
NJ Bar ID: 171092015
Email: kborger@raslg.com
Dated: April 16, 2026

Name and Address of Party Served	**Relationship of Party to the Case**	**Mode of Service**
David Cushing 1734 Almond Road Vineland, NJ 08360	Pro Se Debtor	□ Hand-delivered [x] Regular mail □ Certified Mail/RR □ E-mail □ Notice of Electronic Filing (NEF) □ Other _____ (as authorized by the court*)